



2025:DHC:709



\$~3 (Part-heard)

* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

% **Date of Decision : 30.01.2025**

+ **O.M.P. (COMM) 309/2022**

NATIONAL HIGHWAYS AUTHORITY OF INDIAPetitioner
Through: Mr. G. Suresh, applicant in person.

versus

MS CHENNAI ELEVATED TOLLWAYS LIMITEDRespondent
Through: Mr. Sameer Parekh, Ms. Smita
Bhargava, Ms. Swati Bhardwaj and
Mr. Jayant Bajaj, Advocates.

CORAM:

HON'BLE MR. JUSTICE SACHIN DATTA

SACHIN DATTA, J. (Oral)

I.A. 2566/2025 (Condonation of delay in filing the review application)

1. For the reasons stated in the application, the same is allowed.
2. Consequently, the delay of 17 days in filing the review application stands condoned.

I.A. 2567/2025 (Condonation of delay in re-filing the review application)

3. For the reasons stated in the application, the same is allowed.
4. Consequently, the delay of 30 days in re-filing the review application stands condoned.

REVIEW PET. 46/2025 (Review of the order dated 16.10.2024)

5. This review application is filed under Order XLVII, Rule 1, read with Section 151 of the Civil Procedure Code, 1908, (hereinafter 'CPC') by the applicant, Mr. G. Suresh, seeking reconsideration of the order dated



2025:DHC:709



16.10.2024, passed by this Court.

6. The applicant, Mr. G. Suresh, had filed two impleadment applications, I.A. 34691/2024 in O.M.P. (COMM) 309/2022 and Ex.Appl. (OS) 1108/2024 in O.M.P. (ENF.) (COMM) 133/2022, seeking to implead himself in the ongoing proceedings. This Court, *vide* its order dated 16.10.2024, dismissed these applications by observing as under -

“1. These are applications filed by Mr. G. Suresh, who seeks to implead himself in the present proceedings. The said individual is not a party to the arbitration and has no connection with any of the parties to the disputes.

2. He seeks to implead himself solely on the grounds of being ‘familiar with the project.’

3. In these proceedings, it is neither feasible nor permissible to implead a non-party such as the applicant.

4. Consequently, the applications are dismissed.”

7. The applicant has now filed this review application, seeking reconsideration of the aforementioned order. The applicant argues that his impleadment is essential, as he possesses critical and relevant facts that directly relate to the arbitral award and the underlying project.

8. The applicant contends that these facts were not brought to light by the parties involved in the case, despite their significant relevance to the Section 34 petition under the Arbitration and Conciliation Act, 1996 (hereinafter ‘the A&C Act’).

9. The applicant submits that he seeks impleadment in the present case in order to highlight the patent illegalities, violations of the contractual provisions, and evident bias in the arbitral award.



2025:DHC:709



10. To support his impleadment application, the applicant has placed reliance on **Mr. Ajayan vs. State of Kerala & Ors**, 2024 INSC 881.

11. After hearing the contentions of the applicant at length, this Court is not inclined to allow the present review application. The applicant has failed to establish any connection with the arbitration proceedings or the underlying arbitration agreement in the main matter.

12. It is undisputed that the applicant is neither a signatory to the arbitration agreement nor a party to the arbitration proceedings. In fact, the applicant has no direct or indirect relationship with any of the parties involved in the main dispute.

13. The applicant's claim that the parties to the proceedings have not fully presented the correct facts before the Court does not justify his impleadment in this case. The applicant is neither a necessary nor a proper party. In **Indusind Bank Ltd. v. Ram Laxman Hotels Ltd and Others**, 2009 SCC OnLine Del 1938, this Court addressed the issue as to whether a third party, not involved in the arbitration agreement or proceedings, could file a petition under Section 34 of the A&C Act, challenging an arbitral award affecting the third party. The Court, therein, observed as under -

“7. Though from averments on record, grave doubt is cast with respect to the respondent No. 3 ADR Arbitral Tribunal but there is a technical objection to the maintainability of this petition. The petition under Section 34 of the Act can be preferred only by a party to the arbitration proceedings and not by a third party. The Chief Justice A.P. Shah of this Court sitting in the Division Bench of the Madras High Court in Chennai Container Terminal Pvt Ltd. v. UOI, AIR 2007 Mad 325 has held that Section 34 read with the definition of party in Section 2(1)(h) of the Act makes it amply clear that only a party to the arbitration agreement can invoke the provisions of Section 34 of the Act; a third party has no locus standi to challenge the award under Section 34 of the Act. Similarly, a



2025:DHC:709



Single Judge of this court also in *Florentine Estates of India Ltd. v. CREF Finance Ltd.*, (2004) 110 DLT 742 held to the same effect. In view of the said legal position, the petition under Section 34 of the Act by the petitioner who is admittedly not a party to the arbitration proceedings is not maintainable and is liable to be dismissed.”

(Emphasis supplied)

14. As such, a non-party to the arbitral proceedings cannot be allowed to be impleaded in the Section 34 proceedings.

15. The observations made by the Court in ***Mr. Ajayan v. State of Kerala & Ors.*** (Supra) do not support the applicant’s case. The Court in that judgment held that while Section 195 of the Criminal Procedure Code imposes restrictions on the initiation of proceedings, it allows third parties who have a bona fide connection to the matter (despite not being directly involved in the original proceedings) to challenge decisions that affect them. However, the observations in the said case pertain specifically to criminal proceedings and cannot be *ipso facto* made applicable to the present proceedings.

16. In the circumstances, this Court finds no merit in the applicant’s prayer for impleadment and for review of the order dated 16.10.2024. The review petition is consequently dismissed.

SACHIN DATTA, J

JANUARY 30, 2025/sv